

		On his shifted burden, Defendant has shown a triable issue of material fact. Defendant does not dispute signing the 2021 Trust Transfer Deed but has submitted evidence to show it was not a knowing, genuine and voluntary transfer of any ownership right. Although the 2021 Trust Transfer Deed recites Plaintiff and Defendant were “wife and husband,” Defendant declares Plaintiff and Defendant were in a romantic relationship but never married. (Pineda Decl., ¶ 7.) Notably, Plaintiff also does not dispute they were never married. (Bodde Decl., ¶ 3.) Defendant states in or about 2021 and 2022, she wanted to refinance the subject property because she hoped to purchase other property in Texas. (Pineda Decl., ¶ 4.) Defendant states Plaintiff told her she needed a co-signer to qualify for the refinance, and he agreed to help as a co-signer. (Pineda Decl., ¶ 5.) Plaintiff was only supposed to help Defendant with the refinance and she did not agree he would receive a one-half ownership interest in the Subject Property. (Pineda Decl., ¶ 6.) Defendant was the person primarily handling the refinance paperwork and communications, and when it came time to sign the refinance papers, Plaintiff presented Defendant with a stack of documents. (Pineda Decl., ¶¶ 7, 10.) Defendant did not understand a trust transfer deed adding him to title was included in that stack. (Pineda Decl., ¶ 10.) Defendant’s evidence is sufficient to create triable issues as to concealment, mistake, lack of donative or contractual intent, consideration, and ownership interest in the subject property. To the extent Plaintiff contends Defendant’s claims for fraud, cancellation of instrument, and constructive fraud as alleged in the Cross-Complaint are barred by the statute of limitations, Plaintiff’s notice of motion does not seek summary adjudication as to any causes of action alleged in Defendant’s Cross-Complaint. The only issue identified in the notice is for an interlocutory judgment for partition as alleged in Plaintiff’s Complaint. The court declines to rule on Plaintiff’s contention statute of limitations bars Defendant’s claims alleged in the Cross-Complaint. Defendant to give notice.
13	Pacheco vs. Guardian Storage Centers, LLC	Motion to Strike Portions of First Amended Complaint

	30-2025-01535568-CU-WT-CJC	The Motion to Strike Portions of First Amended Complaint (FAC) by Defendants Guardian Storage Centers, LLC and StorAmerica Management, LP is DENIED. In addition to alleging general wrongdoing to support Plaintiff's retaliation and wrongful termination claims, the FAC also alleges sufficient facts to support a request for punitive damages. For example, the FAC alleges the termination letter referenced a personal \$50,000 loan Plaintiff received from an entity associated with Defendants' ownership, and the loan agreement included an acceleration clause making the full loan balance due upon separation. (FAC, ¶ 60.) The FAC also alleges Defendants terminated Plaintiff's wife from her position as Administrative Assistant on the same day while she was on protected pregnancy disability leave and CFRA baby-bonding leave, just seven days before her scheduled return. (FAC, ¶ 61.) Defendants' simultaneous termination of both spouses resulted in the immediate loss of both spouses' incomes and all employer-provided health insurance for the family. (Ibid.) When the FAC is read as a whole, these allegations sufficiently allege facts constituting oppression as they suggest coordinated adverse action designed to maximize financial and emotional harm that subjected Plaintiff to cruel and unjust hardship in conscious disregard of his rights. Defendants are ORDERED to file an answer within 5 days. Plaintiff to give notice.
--	--	--